IN THE NATIONAL COMPANY LAW TRIBUNAL: NEW DELHI
COURT-IV

ITEM No.201
CA(CAA)48/ND/2025

IN THE MATTER OF:

Webmob Software Solutions Private Limited .... Applicant
And Kiwi Technologies India Private Limited

Under Section 230-232 of the Companies Act, 2013

Order delivered on 05.02.2026

CORAM:
SHRI MANNI SANKARIAH SHANMUGA SUNDARAM
HON'BLE MEMBER (JUDICIAL)
SHRI ATUL CHATURVEDI
HON'BLE MEMBER (TECHNICAL)

PRESENT:

For the Applicant : Mr. Arnav Sanyal, Mr. Gaurav Choudhary, Advocates
For the Respondent :

HYBRID HEARING (PHYSICAL & VC)

C L A R I F I C A T I O N

Ld. Counsel for the applicant is present physically.
On perusal of the petition and other documents filed by the Applicant-Companies, the following has been stated in paragraph 39 of the application: -

"There is no inquiry, inspection or investigation initiated or pending against inter-alia the Transferor Company under the provisions of the Companies Act, 2013 or the Companies Act, 1956."

However, no Affidavit in terms of Section 230(2) of the Companies Act, 2013l has been placed on record.

Further, it is observed that the Applicant-Companies have disclosed the pendency of litigation in respect of Transferee Company, however, the same has not been duly disclosed on Affidavit as required in law. Therefore, the Applicant-Companies are directed to file a separate Affidavit of each company under Section 230(2) of the Companies Act, 2013 within a week's time.
List on **24.02.2026.**

Sd/-
(ATUL CHATURVEDI)
MEMBER (TECHNICAL)

Sd/-
(MANNI SANKARIAH SHANMUGA SUNDARAM)
MEMBER (JUDICIAL)

Abhishek